

ASCII MASTER FLOW – PANEL 1/12: Constitutional purpose and Articles 315-323

ROOT QUESTION

How can recruitment remain merit-based, representative and insulated from patronage?

EVOLUTION

Charter Act 1853 -> Macaulay Committee 1854 -> first PSC, 1 October 1926

-> Government of India Act 1935 -> Constitution, 26 January 1950.

PART XIV, CHAPTER II

315 institution | 316 appointment/term | 317 removal/suspension

318 service/staff rules | 319 post-office limits | 320 functions/consultation

321 additional functions | 322 charged expenses | 323 reports.

DESIGN

independent constitutional advice -> lawful executive appointment -> public accountability.

LIMIT

merit is not one test score; Articles 14, 16, reservation and suitability remain operative.

MUST REMEMBER: Audit Articles 315-323 actor by actor across UPSC, SPSC and a Joint State PSC; constitutional existence does not mean constitutionally fixed strength.

ASCII MASTER FLOW – PANEL 2/12: UPSC, SPSC and Joint PSC federal map

UNION PUBLIC SERVICE COMMISSION

Article 315(1) -> Union institution -> members appointed by President.

STATE PUBLIC SERVICE COMMISSION

Article 315(1) -> one for each State, subject to Article 315

-> members appointed by Governor.

JOINT STATE PSC

Article 315(2) -> resolutions by participating State legislatures

-> Parliament provides by law -> members appointed by President.

UPSC ASSISTANCE TO ONE STATE: ARTICLE 315(4)

Governor request + President approval + UPSC agreement.

JOINT RECRUITMENT: ARTICLE 320(2)

UPSC assists two or more States where special qualifications are required.

TRAP

constitutional source, creating instrument, appointing authority and service area differ.

ASCII MASTER FLOW – PANEL 3/12: Article 316 membership and tenure

APPOINTMENT

UPSC / Joint PSC -> President | SPSC -> Governor.

COMPOSITION

number and service conditions are regulated under Article 318.

As nearly as may be, one-half of members must have held government office for ten years.

TERM

six years from entering office.

UPSC member: age ceiling 65 | SPSC or Joint PSC member: age ceiling 62.

RESIGNATION

UPSC / Joint PSC member -> President | SPSC member -> Governor.

ACTING CHAIR: ARTICLE 316(1A)

President for UPSC/Joint PSC | Governor for SPSC.

TRAP

appointment, resignation, acting appointment and removal do not use one authority.

ASCII MASTER FLOW – PANEL 4/12: Removal, suspension and independence

MISBEHAVIOUR ROUTE: ARTICLE 317(1)

President refers to Supreme Court -> Court inquiry and report

-> President may remove after constitutional finding.

DIRECT PRESIDENTIAL GROUNDS: ARTICLE 317(3)

insolvency | paid employment outside office | infirmity of mind or body.

DEEMED MISBEHAVIOUR: ARTICLE 317(4)

interest in specified government contracts or benefits.

SUSPENSION PENDING INQUIRY: ARTICLE 317(2)

President for UPSC/Joint PSC | Governor for SPSC.

ARTICLE 318

President/Governor regulates member conditions and staff; disadvantage bar after appointment.

ARTICLE 319 + ARTICLE 322

post-office restrictions + expenses charged on Consolidated Fund.

LIMIT

strong tenure and finance protection coexist with executive appointment and staff dependence.

ASCII MASTER FLOW – PANEL 5/12: Article 320 examinations and consultation

ARTICLE 320(1)

conduct examinations for appointments to Union and State services.

ARTICLE 320(2)

UPSC assists two or more States in joint recruitment for specially qualified services.

ARTICLE 320(3) CONSULTATION

methods of recruitment -> principles for appointments

-> promotions and transfers -> candidate suitability

-> disciplinary matters -> legal-cost claims -> injury-pension claims.

DECISION CHAIN

service rules + vacancy + notice -> examination/selection -> recommendation

-> appointing government makes lawful decision.

LIMITS

PSC advice is generally advisory | government owns posts and cadres

| consultation is not adjudication | recommendation is not appointment.

ASCII MASTER FLOW – PANEL 6/12: Exemptions, extension and Article 323 reporting

ARTICLE 320(3) PROVISIO

President/Governor may make consultation-exemption regulations
-> regulations must be laid before Parliament/State legislature.

ARTICLE 320(4)

consultation is not required on the manner of Article 16(4) reservation
or giving effect to Article 335.

State of U.P. v. Manbodhan Lal Srivastava (1957)

consultation is directory; non-consultation alone does not invalidate action.

ARTICLE 321

Parliament/State legislature may extend functions to local or other public institutions.

ARTICLE 323

annual report -> President/Governor -> legislature
+ memorandum explaining non-acceptance of advice.

SYNTHESIS

non-binding advice becomes constitutionally visible through reasoned legislative
reporting.

CLOSE DISTINCTION: Only the President removes any PSC member, but pending an Article 317
reference the President suspends UPSC/Joint PSC members and the Governor suspends an SPSC
member.

ASCII MASTER FLOW – PANEL 7/12: Recruitment ownership and lateral entry

WHO OWNS WHAT?

Government / DoPT -> posts, recruitment rules, cadre, reservation and appointment.

UPSC / SPSC -> examination, selection and consultation assigned by Constitution/rules.

SSC / departmental body -> statutory or executive recruitment within assigned jurisdiction.

CAT / courts -> service-dispute adjudication and legality review.

LATERAL ENTRY TEST

identify post -> recruitment rule -> mode and level -> consultation regulation

-> reservation/equality control -> transparent selection -> appointing authority.

CURRENT CONTROL

15 March 2024 consultation-regulation amendment covers specified posts and methods.

It is not a universal constitutional category called lateral entry.

TRAP

UPSC is not the entire civil-service system and CAT is not a recruitment agency.

ASCII MASTER FLOW – PANEL 8/12: Selection case law and examination-integrity control

FAIRNESS AND REVIEW

Ashok Kumar Yadav (1985) -> bias controls and proportionate interview design.

K. Manjusree (2008) -> no undisclosed minimum criterion after process begins.

Tej Prakash Pathak (2024) -> stable, lawful and non-arbitrary recruitment rules.

Shankarsan Dash (1991) -> select-list entry gives no indefeasible appointment right.

M.V. Thimmaiah (2007) -> courts do not become appellate selection boards.

PUBLIC EXAMINATIONS ACT AND RULES, 2024

prevention -> secure centres/CBT -> incident reporting -> investigation -> penalty.

INTEGRITY SYSTEM

conflict disclosure + audit trail + cyber security + calibrated transparency

-> prompt reasoned remedy.

LIMIT

criminal punishment cannot cure opaque rules, weak governance or inaccessible remedies.

ASCII MASTER FLOW – PANEL 9/12: Neutrality, capacity, reform, traps and qualified answer synthesis

INDEPENDENCE TEST

credible appointments + secure tenure + charged expenses + professional staff

-> protected data/exams + reasoned decisions + legislative reporting + judicial review.

REFORM

transparent criteria -> vacancy planning -> conflict/recusal rules

-> common security standards -> faster grievance disposal

-> SPSC capacity support without Union takeover.

PRELIMS FIREWALL

Governor appoints SPSC but President removes | age 65 versus 62

| Joint PSC needs parliamentary law | Article 320 advice is not binding

| Article 319 restrictions differ | ECI, SSC, CAT and PSC are not interchangeable.

PYQ AUDIT

no direct standalone 2018-2026 PSC PYQ verified; do not manufacture one.

MAINS SPINE

constitutional purpose -> exact Article -> function -> safeguard

-> practical deficit -> case-year -> accountable reform ->

neutrality-with-representation verdict.

ASCII MASTER FLOW – PANEL 10/12: Article 319 post-tenure eligibility matrix

UPSC CHAIRMAN

no further employment under Union or State.

SPSC CHAIRMAN

may become UPSC Chairman/member or Chairman of another SPSC.

UPSC MEMBER

may become UPSC Chairman or an SPSC Chairman.

SPSC MEMBER

may become UPSC Chairman/member or Chairman of same/another SPSC.

COMMON LIMIT

no reappointment to the same office; constitutional office is not automatically government employment.

ASCII MASTER FLOW – PANEL 11/12: Discipline consultation, exemptions and reporting loop

ARTICLE 320(3)

recruitment methods -> appointments/promotions/transfers -> disciplinary matters -> legal-cost and injury-pension claims.

ARTICLE 320(4) / PROVISIO

reservation matters and valid consultation regulations define exclusions.

MANBODHAN LAL (1957)

consultation is directory; non-consultation does not automatically invalidate action.

ARTICLE 323

annual report -> legislature -> memorandum of non-accepted advice with reasons.

RESULT

advice is non-binding but rejection is accountable.

ASCII MASTER FLOW – PANEL 12/12: Current integrity controls and commission reform

DATED CONTROL – 28 AUGUST 2026

Dr Ajay Kumar is listed as UPSC Chairman. Public Examinations Act and Rules, 2024 apply to listed UPSC examinations. The 15 March 2024 consultation-regulation amendment covers specified deputation and related methods.

INTEGRITY CHAIN

secure paper/CBT creation -> vendor controls -> incident reporting -> investigation -> reasoned candidate remedy.

REFORM

transparent appointments -> filled vacancies -> fixed calendars -> recusal and interview rubrics -> published consultation memoranda -> interoperable but accountable State learning.

LEGAL/SOURCE LIMIT: The official UPSC page identifies Dr Ajay Kumar as Chairman. Article 320 consultation remains directory under Manbodhan Lal, while valid exemption regulations and Article 323 reporting preserve accountability.